

The Protection of Plant Varieties and Farmers Rights (Recognition and Reward from the Gene Fund) Rules, 2012

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The Protection of Plant Varieties and Farmers Rights (Recognition and Reward from the Gene Fund) Rules, 2012

UNION OF INDIA

India

The Protection of Plant Varieties and Farmers Rights (Recognition and Reward from the Gene Fund) Rules, 2012

Rule

THE-PROTECTION-OF-PLANT-VARIETIES-AND-FARMERS-RIGHTS-RECOGNITION-AND-REWARD-FROM-THE-GENE-FUND-RULES-2012 of 2012

Published on 31 July 2012

Commenced on 31 July 2012

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[Note: The original publication document is not available and this content could not be verified.]

The Protection of Plant Varieties and Farmers Rights (Recognition and Reward from the Gene Fund) Rules, 2012

Published vide Notification New Delhi, the 31st July, 2012

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 601(E). - In exercise of the powers conferred by clause (iii) of sub section (1) of section 39 of Protection of Plant Varieties and Farmers' Rights Act, 2001 (

53 of 2001

), the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These Rules may be called the Protection of Plant Varieties and Farmers' Rights (Recognition and Reward from the Gene Fund) Rules, 2012.

(2)

They shall come into force from the date of their publication in official Gazette.

2.

Reward.

(1)

A farmer who is engaged in the conservation of genetic resources of land races and wild relatives of economic plants and their improvement through selection and preservation shall be entitled to a reward to be called the "Plant Genome Saviour Farmer Reward".

(2)

There shall be maximum of ten rewards or less in a financial year.

(3)

The reward shall comprise of a citation, memento and cash of rupees One Lakh each.

3.

Recognition.

(1)

A Farmer referred to in sub-rule (1) of rule (2) shall be entitled to recognition to be called the Plant Genome Saviour Farmer Recognition.

(2)

The recognition shall consist of a citation and memento subject to a maximum of twenty recognition certificates in a financial year.

4.

Recognition and Reward to be conferred annually.

(1)

The recognition and reward to farmers shall be conferred annually.

(2)

The details and application form for recognition and reward from the Gene Fund shall be widely publicised through newspaper and website of the Authority.

5.

Eligibility and the awardees to be determined by committee.

(1)

The eligibility criteria for the recognition and reward shall be in accordance with section clause (iii) of sub section (1) of 39.

(2)

A farmer to be eligible for the recognition and reward shall in accordance with clause (iii) of sub section (1) of 39, be engaged in the conservation of genetic resources of land races and wild relatives of economic plants and their improvement through section and preservation and the material so selected and preserved has been used as donors of genes in varieties registrable under the Act.

(3)

A Thirteen member committee headed by Additional Secretary/Special Secretary looking after the Extension work in Department of Agriculture and Cooperation, as Chairman shall determine the eligibility and select the awardees for recognition and reward from the Gene Fund.

(4)

The committee shall comprise of: -

(a) Additional Secretary/Special Secretary looking after

Extension work in Department of Agriculture and Cooperation;

(Chairman)

(b) Deputy Director-General (Agri, Extension), Indian Council of Agriculture Research;

(Member)

(c) Deputy Director-General (CAPART);

(Member)

(d) Joint Secretary (Extension), Department of Agriculture and Cooperation;

(Member)

(e) Joint Secretary (Seeds), Department of Agriculture and Cooperation;

(Member)

(f) Joint Secretary, Ministry of Panchyati Raj;

(Member)

(g) Joint Secretary, Ministry of Tribal Affairs;

(Member)

(h) Chief Executive Officer, National Medicinal Plants Board;

(Member)

(i) Secretary, National Biodiversity Authority;

(Member)

(j-l) Three Representatives each from farmers' organisation, women's organisation, Non Government Organisation, relating to agriculture and Agriculture Universities;

(Member)

(m) The Registrar (Farmers' Rights) shall be the ex officio Member-Secretary of the committee.

(5)

The quorum of the committee shall be five.

(6)

The farmers shortlisted for recognition and reward shall be required to deposit in the National Gene Bank of the Protection of Plant Varieties and Farmers' Right Authority a specified quantity of seeds or propagating material to be decided by the Chairperson of the Authority.

(7)

The farmers once entitled for Plant Genome Saviour Farmer Reward or Plant Genome Saviour Farmer Recognition shall not be eligible to apply again.

6.

Application Form.

(1)

The application form for Plant Genome Saviour Farmer Recognition or Plant Genome Saviour Farmer Reward shall be in accordance with the Schedule - I to these rules.

(2)

The Applicant shall submit a declaration in form given in Schedule - II to these rules.

(3)

The applications shall to be forwarded through Chairperson or Secretary of the Concerned Panchayat Biodiversity Management Committee or Concerned District Agricultural Officer or Director of Research of concerned State Agriculture University or Concerned District Tribal Development Office.

I

[See rule 6(1)]

Protection of Plant Varieties and Farmers' Rights Authority

S-2, 'A' Block, NASC Complex, DPS Marg, Opp. Todapur Village

New Delhi 110012

Application form for plant Genome Saviour Farmer Reward/ Recognition for a farmer who is engaged in Conservation of

Genetic Resources of Land Races and Wild Relatives of Economic Plants and their Improvement through selection and Preservation and that the material so selected and Preserved has been used as Donors of Genes in varieties Registrable under PPV&FR Act, 2001 (Section 39(1)(iii) of the Protection of Plant Varieties and Farmers' Right Act, 2001)

Year_____

1.

Name of the Applicant(ALL CAPITALS)

2.

Postal address (for

correspondence)BlockVillageP.O.DistrictStatePinTel.

(if any)E-mailFaxMob.

3.

Location(s) of the conservation site(s)

4.

Plants and varieties in which conservation efforts had been made.

5.

Whether the material so selected and preserved has been used as donors of genes in varieties registrable under Protection of Plant Varieties & Farmers' Rights Authority Act, 2001(Certificate from the concerned institution to be attached)

6.

How many varieties (including farmers' varieties, land races, wild relatives and other genetic resources) had been conserved?(give details plant/crop wise)

7.

How much area is being planted/ cultivated by the applicant with the conserved varieties?(give details)

8.

Whether any innovative methods of conservation like cultural practices, storage techniques etc developed/ adopted?(give details)

9.

Give information about the varieties that were developed with conserved variety.

10.

What is the distinct trait identified in the conserved variety/ varieties

11.

Name of the organization, if any that identified any useful trait in the conserved varieties.

12.

Whether the Farmer rewarded or recognized for the conservation efforts by any other organization?(give details)

13.

Name the agencies (governmental or Non Government Organizations) conversant with the claims made

i. Governmental:ii. Non Government Organizations

14.

Whether the material finds its place in People's Biodiversity

Register

Note: 1. Please sign each page of the Application Form .

2. There is no application fee.

3. For details/ information in any column, extra pages can be attached as Annexure.

4. Any clarification can be sought from the officials of PPV&FRA.

5. Declaration to be attached.

II

Protection of Plant Varieties & Farmers' Rights Authority

S-2, 'A' Block NASC Complex, DPS Marg, Opp. Todapur Village

New Delhi 110 012

Declaration

[See rule 6 (2)]

Name and address/telephone no. /e-mail of the person with whom the Registrar, PPV&FRA can correspond with:

Name (Block Letters) _____

Postal address (for correspondence) _____

Block _____

Village _____

P.O. _____

District _____

State _____

Pin _____

Tel. (if any) _____

The information given in the application is true to the best of my knowledge, information and belief.

Signature of the Applicant

It is hereby certified that the farmer named in this application has conserved and improved the material mentioned in this application form and the said material has been used as donor of genes in varieties registrable under PPV&FR Act, 2001.

(To be certified by Chairperson/Secretary of the Concerned Panchayat Biodiversity Management Committee or Concerned District Agricultural Officer or Director of Research of concerned SAU or Concerned District Tribal Development Office)

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